

How to File for Divorce — One-Pager

*England & Wales, no-fault. Plain summary for discussion. Not legal advice.
Compiled 5 Jun 2026.*

What "filing" actually is

Filing the divorce application is the **opening move** — and it's almost a press-button. It needs **no financial detail, no agreement, and no reason** (no-fault). Filing **starts a 20-week clock**; the money side (gathering figures → mediation → drafting the consent order) all happens **during** those 20 weeks. So filing early just gets the clock ticking — it commits us to nothing about the finances.

The 20 weeks is a **minimum, not a deadline**: you can take as long as you need after it (real-world average ~44 weeks).

What we need to file

- Both full names (as on the marriage certificate) + both addresses
- Marriage date — 22 Aug 1998
- Marriage certificate — a clean certified copy (ordering a fresh one, ~£11)
- £612 court fee (one fee, whoever applies)
- Tick the box to keep financial claims open (no figures needed — just a placeholder for the consent order later)

What we do NOT need to file

- Any financial information — asset values, pensions, house valuation, debts
- The consent order (that comes later, inside the 20 weeks)
- Any reason, grounds, or blame

Sole vs joint (same cost, same timeline, same outcome)

- **Joint** — we apply together on one form; both confirm. Collaborative, but moves at the pace we both act.
- **Sole** — one of us applies; the other simply acknowledges receipt later. Faster to start; still entirely no-fault, no blame.

Costs to budget for (most are shared)

- **£612** — court fee to file (one-off)
- **Pensions expert (PODE)** — **~£2,500–3,500, shared**. An actuary works out a *fair* pension split (a defined-benefit pension's headline value is misleading, and Heather has one). One jointly-instructed expert, cost split. Lands during the "gathering the numbers" phase.
- **Mediation** — **budget ~£2,000 total (~£1,000 each)**:
 - *Does what*: turns "50/50 in principle" into concrete terms — offsetting, timing of realisation, clean break vs maintenance → produces the MoU the consent order is drafted from
 - *Cost*: MIAM each (~£100pp) + ~3 sessions + MoU; ~ of the solicitor route
 - *Provider*: National Family Mediation (independent / charity — not a government service); mediator is neutral, advises neither side
 - *Action*: contact early, as advised
- **Consent order** — ~£1,600 + VAT to draft it (fixed-fee solicitor), + ~£53 to file
- *(Staying cooperative is what keeps all of these at the low end — a contested route multiplies every one.)*

The shape of the process



Two tracks run **in parallel** over the same period: **the divorce** (fixed, can't be contested) and **the finances** (where the actual work is). They meet at two gates. Timeline is **illustrative** — some labels/durations still being refined.

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title Divorce Timeline – both tracks run in parallel

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section DIVORCE

File application :a1, 2026-06-15, 1w

Application issued :milestone, am1, after a1, 0d

20-week statutory wait :a3, after am1, 20w

Apply for Conditional Order :milestone, ac1, after a3, 0d

Court lists CO (5-7 wks) :ac2, after ac1, 6w

GATE 1 - Conditional Order :milestone, g1, after ac2, 0d

6 wks + 1 day :a4, after g1, 6w

28d pension-order wait :b6, after bm2, 4w

Apply for Final Order :milestone, af1, after b6, 0d

Court processes :af2, after af1, 2w

GATE 2 - Final Order :milestone, g2, after af2, 0d

section FINANCES

Gather the numbers	:b0, 2026-06-15, 8w
Mediation (optional)	:b1, after b0, 6w
Draft consent order + D81	:b2, after b1, 7w
Lodge consent order	:milestone, b4, after g1, 0d
Court reviews fairness	:b5, after b4, 6w
Consent order sealed	:milestone, bm2, after b5, 0d
Pension share implements	:pi1, after g2, 16w

section COSTS

£612 court fee	:milestone, k1, 2026-06-15, 0d
Mediation (~1/3 of lawyers)	:k2, after b0, 6w
Consent order £1,600+VAT	:milestone, k3, after b1, 0d
Filing fee ~£53	:milestone, k4, after g1, 0d

Reading it: filing the application (far left) starts everything. We gather numbers and mediate **during** the 20-week wait. **Gate 1 (Conditional Order)** unlocks lodging the financial agreement. **Gate 2 (Final Order)** — the marriage ends — is deliberately held until the financial/pension side is sealed and safe.

Notes still to firm up: exact mediation cost (per person vs joint), the ~£53 consent-order filing fee, and a few diagram labels. Statutory minimum ~26 weeks; real-world average ~44 weeks.